

Proc., § 425.16(c) [“prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs”).) The Court finds the requested amount is reasonable and awards fees and costs of \$13,334.15 to Defendant Walker. Plaintiffs are ordered to pay the awarded amount no later than 30 days from the date of this order.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600422	MARTINEZ vs BUCKEYE RETIREMENT CO., LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

Demurrer is moot, based upon Court’s ruling on ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE).

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601403	MORGAN vs CUSHMAN & WAKEFIELD	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Summary of Ruling: The Court grants the motion and stays the matter pending arbitration. The Court overrules the evidentiary objections.

Factual / Procedural Context:

Tiyiesha Morgan (“Plaintiff”) was employed by Cushman & Wakefield (“Defendant”) as an assistant property manager. She contends that the apartment complex where she worked was kept in an unsafe condition because there was a lack of security, which resulted in unhoused individuals breaking into apartment units. She asserts that these break-ins and concern for her safety caused her stress, which resulted in her needing to take a leave of absence due to her mental health. After being out on medical leave for approximately seven months, Plaintiff received a letter from Defendant indicating that Plaintiff’s leave appeared indefinite. It demanded that Plaintiff provide more documentation from her healthcare provider within a week or her employment would be terminated. Plaintiff complied with the request for additional information and had her physician fill out a form sent by Defendant. Even though Plaintiff provided the requested information, she was sent a letter dated October 3, 2024, indicating that her employment has been terminated due to her indefinite leave.

The complaint asserts the following causes of action: (1) discrimination on the basis of disability, (2) failure to engage in a good-faith interactive process, (3) failure to reasonably accommodate a known disability and retaliation for requesting a reasonable accommodation, (4) retaliation, (5) failure to prevent discrimination and/or retaliation, (6)